

Claims, defenses, and disputed elements

Benton identifies one Title VII retaliation claim arising from protected opposition and EEOC participation followed by RIF termination. Blue Cedar identifies a legitimate cost-reduction defense and disputes knowledge, comparator similarity, pretext, and but-for causation.

The parties agree the RIF had a real savings target but disagree whether that fact explains the selection of Benton. They agree the March 24 termination was adverse. They dispute the meaning of the January 17 email, Pike's February knowledge, calibration changes, comparator exceptions, and the relationship among Blue Cedar's explanations.

Discovery will separate admitted contemporaneous materials from later witness recollections.

Proposed discovery subjects

The parties propose targeted discovery into: work assignments and lead credits from 2023 through March 2025; the January 17 complaint; EEOC notice routing; RIF planning and version history; criteria applied to Benton, Wynn, Ibarra, and Keene; decisionmaker communications; termination reasons; and mitigation relevant to remedies.

Blue Cedar will identify custodians Solis, Pike, Voss, and Finch. Benton will identify her email, calendar, performance, and job-search sources. Comparator discovery will remain limited to employees evaluated in the same calibration group unless later facts justify expansion.

The parties will preserve native workbook formulas, revision metadata, and message headers rather than producing only screenshots.

Deadlines and disclosure sequence

Initial disclosures are due August 15, 2025. Written discovery opens August 18. Substantial document production is due September 5. Fact depositions close October 10. Supplementation of materially incomplete disclosures is due promptly and no later than October 17 absent leave.

Dispositive motions are due October 27, oppositions November 10, and replies November 17. Witness information used on a motion must be timely disclosed, supplemented when required, or otherwise made known during discovery.

The parties request that these dates govern discovery and dispositive-motion practice. Neither a witness's name nor a general subject description excuses later supplementation of materially new information.

Electronically stored information

Blue Cedar will produce the RIF workbook in native spreadsheet form with formulas and revision history, plus a rendered human-readable copy. Email will retain sender, recipient, sent time, subject, and attachment relationships. Calendar exports will retain organizer and attendee data.

The parties agree not to treat duplicate exports as separate substantive documents. A checksum may identify identical files, but the record will preserve a distinct dated version when values or metadata changed.

The parties will redact personal identifiers under Rule 5.2 and seek protective treatment for confidential client or personnel information when necessary. Privilege assertions require a log; no category is designated sealed by this proposed plan.

Depositions and unresolved evidentiary matters

The parties reserve depositions of Benton, Pike, Solis, Wynn, Ibarra, Voss, and a Blue Cedar Rule 30(b)(6) designee. Keene and Finch may be examined only if existing witnesses cannot authenticate the relevant score or savings records.

The parties anticipate disputes over whether comparator testimony was timely disclosed and whether later recollection merely explains or materially changes the discovery record. They do not ask the scheduling order to decide admissibility in advance.

The proposed plan preserves Blue Cedar's right to object and Benton's right to show that information was otherwise made known, substantially justified, or harmless. The district court will resolve any concrete motion on a specific record.